

Court No. - 21

Case :- WRIT - C No. - 30286 of 2024

Petitioner :- Ram Pratap

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Chandra Kumar

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Learned counsel for the respondent-Electricity Department prays for and is granted ten days time to obtain instructions in the matter.

2. Put up this case as fresh on **24.9.2024.**

Order Date :- 11.9.2024

S. Singh

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Kshitij Shailendra,J.

1. The petitioner has prayed for quashing of the recovery certificate dated 30.07.2024 issued against him for recovery of electricity dues in a case of alleged theft of electricity.
2. The petitioner has challenged the recovery proceedings on several grounds, one of them being that no incriminating article was seized at the time of alleged inspection so as to lead to the conclusion that the petitioner was indulging in any theft.
3. Sri Gaurav Singh, learned counsel for the respondent-Electricity Department submits that since the procedure stipulated under Clauses 6.8 and 8.1 of U.P. Electricity Supply Code was not followed in making assessment and, therefore, the impugned recovery has been withdrawn on 18.09.2024 and now the respondent-Electricity Department would provide opportunity of hearing to the petitioner and fresh order would be passed.
4. Concededly, the recovery has been withdrawn after the Court entertained the challenge and called for a response.
5. We do not approve such state of affairs. In case there was defect in the procedure, the recovery should have been withdrawn forthwith so that assessee is not forced to approach this Court.
6. We permit the Electricity Department to proceed afresh, subject to payment of a cost of Rs. 10,000/- to the petitioner.

7. Let the instant order be placed before Managing Director of the concerned DISCOM so that he may decide as to whether the said cost would be paid by the DISCOM or by the concerned Executive Engineer.

8. The petition is **disposed of** accordingly.

Order Date :- 24.9.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)